

SENATE No. 3005

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, March 26, 2026.

The committee on Municipalities and Regional Government to whom was referred the petition (accompanied by bill, Senate, No. 1456) of Paul W. Mark for legislation relative to voting on proposed regional school districts, report the accompanying bill (Senate, No. 3005).

For the committee,
Rebecca L. Rausch

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An Act relative to voting on regional planning board proposed regional agreements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by striking out section 15 and inserting in place thereof the following
3 section:-

4 Section 15. The select board or council of each of the several towns shall, upon receipt of
5 the recommendation that a regional school district should be formed and the proposed agreement
6 or agreements submitted in accordance with the provisions of sections 14 to 14B of this chapter,
7 inclusive, or otherwise in the form of and with the approval required by said sections, cause to be
8 presented the question of accepting the provisions of sections 16 to 16I of this chapter, inclusive,
9 and the proposed agreement or agreements. Said question shall be determined: (i) in a town
10 having an open town meeting, by vote with printed ballots at an annual or special town meeting
11 to be held in either case within 30 days after receipt of such recommendation by the select board
12 or at an annual or special town election to be held in either case not less than 35 nor more than
13 50 days after receipt of such recommendation; or (ii) in a town having a representative town
14 meeting or council, at an annual or special town election to be held in either case not less than 35

15 nor more than 50 days after receipt of such recommendation. The article in the warrant for such
16 annual or special town meeting or election and the question on the printed ballots to be used at
17 such meeting or election shall be in substantially the following form:

18 Shall the town accept the provisions of sections 16 to 16I, inclusive, of chapter 71 of the
19 General Laws providing for the establishment of a regional school district, together with the
20 towns of , and , etc., and for construction, maintenance and operation of a regional school by said
21 district in accordance with the provisions of a proposed agreement filed with the select board?

22 If a majority of the voters present and voting on said question in each of the several
23 towns shall vote in the affirmative, said sections 16 to 16I, inclusive, shall become effective, and
24 the proposed regional school district shall be deemed to be established immediately in
25 accordance with the terms of the agreement so adopted notwithstanding any defect or omission
26 in the creation or organization of any regional school district planning committee or regional
27 school district planning board.